

### Payment to Class Representatives

Representative plaintiffs Cruz Soto and Monica Nanelly Garcia request approval of an award of \$7,500 each for their roles as representative plaintiffs and the additional time, effort, and risk accepted in performing her role. Plaintiff Garcia's declaration submitted on May 12, 2025 in support of the request for preliminary approval of the settlement attests to spending at least 45-50 hours on the case and concern about the publicly available information showing she sued her former employer potentially hurting her employability. (Garcia Prelim. Decl., ¶¶ 12-13, 17.) Plaintiff Soto similarly attests to his concern with future employability after participation in the lawsuit and having spent at least 50 hours assisting in the prosecution of the case. (Soto Prelim. Decl., ¶¶ 12, 15-16.) With this information the court indicated in ruling on the motion for preliminary approval that it anticipated reducing the incentive awards based on the disparity between the incentive awards and the average recovery.

The evidence submitted with this motion for final approval does not support awarding the requested \$7,500 to each plaintiff. The declarations submitted on March 18, 2026 contradict the previous amount of hours allegedly spent assisting with the prosecution of their action and fail to identify risks to employability beyond speculation. Both plaintiffs now attest to spending only 24 hours assisting their attorneys with the case. (Soto Decl., ¶ 8; Garcia Decl., ¶ 6.)

The court recognizes the risks in paying an award of costs in the event the lawsuit was unsuccessful and the possibility of an impact to plaintiffs' future career prospects. The estimated settlement payments of \$449.51 and \$766.82 do not fairly represent those risks or efforts in obtaining a settlement that will yield payments to the other class members. The court intends to approve a reduced incentive award of \$5,000 to each named plaintiff. The \$5,000 balance will be added to the Net Settlement Fund for the benefit of the class members.

### Payment to Class Administrator

Plaintiffs also request court approval of a \$7,750 payment to the settlement administrator ILYM Group, Inc. for the costs of administering the settlement. (Howard Suppl. Decl., ¶ 14.) The administrative cost payment appears to be reasonable given the amount of work to be performed in sending out class notices, tracking down missing class members, handling questions from class members and parties, and sending out payments to class members, as well as providing declarations in support of the motions for class settlement approval. Therefore, plaintiffs have shown that the payment of \$7,750 to the class administrator is reasonable and should be approved.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

### **Tentative Ruling**

**Issued By:** JS **on** 5/19/2026.  
(Judge's initials) (Date)

(37)

**Tentative Ruling**

Re: ***Umpqua Bank v. Sran Family Orchards, Inc.***  
Superior Court Case No. 25CECG00844

Hearing Date: May 21, 2026 (Dept. 503)

Motion: 1) Order to Show Cause re Contempt  
2) Motion to Stay

**Tentative Ruling:**

To grant and set the order to show cause hearing on Friday, July 22, 2026 at 1:30 p.m. in Department 503. Counsel for plaintiff shall submit to the court for signature a revised order to show cause as discussed below.

To take the motion to stay off calendar as no papers were filed.

**Explanation:**

When contempt is not committed in the immediate view and presence of the court, the facts constituting the contempt shall be presented to the court in an affidavit. (Code Civ. Proc., § 1211, subd., (a).) After notice to the opposing party's lawyer, the court (if satisfied with the sufficiency of the affidavit) must sign an order to show cause re contempt in which the date and time for a hearing are set forth. (Code Civ. Proc., § 1212; *Arthur v. Superior Court* (1965) 62 Cal.2d 404, 408 ["an order to show cause must be issued"].) Indirect contempt (based on conduct outside the presence of the court) requires a showing of the following elements: (1) issuance of a valid order; (2) knowledge of the order; (3) ability to comply with the order; and (4) willful disobedience of the order. (*Conn. v. Superior Court* (196 Cal.App.3d 774, 784).)

Here, the papers and declarations filed by plaintiff make a prima facie showing that defendants violated the Temporary Restraining Order issued April 30, 2025 and the Preliminary Injunction issued June 6, 2025. (*Crawford v. Workers' Comp. Appeals Bd.* (1989) 213 Cal.App.3d 156, 169.) All of the elements of indirect contempt appear to be satisfied, an order to show cause shall issue.

Plaintiff submitted the proposed order to show cause as an attachment to the notice for the instant application. Plaintiff is to submit the proposed order in a separate document. Additionally, the order to show cause shall be revised to include a deadline for service. The court will consider any stipulated service and briefing schedule. If the parties do not stipulate to a specified service and briefing schedule, the court will provide such dates.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

